

SENATE No. 2830

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 11, 2025.

The committee on Housing to whom was referred the petition (accompanied by bill, Senate, No. 999) of John F. Keenan for legislation relative to impose notification requirements on both tenants and landlords when bed bugs are found at a property, report the accompanying bill (Senate, No. 2830).

For the committee,
Julian Cyr

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An Act relative to cimex lectularius.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 186 of the General Laws is hereby amended by inserting the
2 following new section:-

3 Section 32. Cimex lectularius.

4 (a) For purposes of this section the following words shall have the following definitions,
5 unless the context clearly requires otherwise:-

6 “Control” means the process required by a professional pesticide applicator in an attempt
7 to eliminate or manage an infestation of bed bugs by poisoning, spraying, fumigating, trapping or
8 by any other recognized and lawful pest-elimination method, including repeated applications of
9 any treatment, particularly to areas where bed bugs are likely to congregate, provided that the
10 department of public health may recommend and issue standards on treatment methods as they
11 see fit based on the availability of updated information and science. Control of bed bugs shall be
12 deemed completed if there has been no evidence of bed bug activity for thirty (30) days after the
13 last application of any treatment.

“Infestation” means the presence of bed bugs, or signs of their presence, in a quantity large enough that the tenant of a dwelling unit has knowledge, or should have knowledge, of the presence of bed bugs in the dwelling unit.

“Certified Applicator” shall have the meaning provided in section 2 of chapter 132B.

(b) Any tenant with actual knowledge of the presence of bed bugs in said tenant’s dwelling unit shall: (1) immediately provide notice to the owner in writing after becoming aware of the presence of bed bugs; (2) allow the owner, as well as its agents, inspectors, certified applicators, and contractors, to enter the dwelling unit to perform inspections repairs, exterminations, and applications, upon not less than 24 hour notice; (3) comply with all protocols and instructions afforded to tenant by the certified applicator, including without limitation, encasing and sealing personal property in plastic bags, laundering personal property, removing personal property which may be to be infested with bed bugs; and (4) remove personal property identified for removal by the certified applicator. No tenant shall interfere with the certified applicator’s performance of any extermination or inspection. Any tenant that fails to provide access to the dwelling unit, interferes with any inspection or extermination, or fails to comply with the protocols and/or instructions of the certified applicator, shall be responsible for any actual and consequential damages incurred by the owner as a result of such denials.

(c) Within 5 business days of receiving a notice under subsection b, the landlord shall commence an extermination protocol and notify the tenants and owners of any surrounding units; provided, that if a certified inspector fails to observe an infestation of bed bugs, the owner shall have no further obligation under this section. The owner shall perform all treatments and

exterminator services as may be required by the certified applicator until the bed bug infestation is resolved.

An owner shall be deemed to have constructive knowledge of an infestation of bed bugs in the event the owner is aware of an infestation of bed bugs in any surrounding unit. If an owner has actual or constructive knowledge of the presence of bed bugs in a vacant unit or otherwise prior to the signing of a lease for a new tenant, the owner must take action under this subsection or the lease shall be void.

SECTION 2. Section 127Q. Cimex Lectularius Awareness

The department of public health shall prepare informational materials that describes bed bugs, how to avoid infestations and legal rights and obligations imposed on tenants and landlords. Said informational materials may contain additional information that the department deems necessary and shall be updated by the department as new information concerning bed bugs becomes available.

SECTION 3. The executive office of housing and livable communities may promulgate regulations pursuant to section 32 of chapter 186, as inserted by section 1 of this act.